SYSTEM ANNOTATED REFERENCE CONTRACT 06: LIVE PERFORMANCE & FESTIVAL BOOKING AGREEMENT

> SYSTEM METADATA & EVALUATION HEADER
> - Document ID: SYS-ANNOT-06
> - Contract Type: live_performance (Live Concert, Festival & Corporate Performance Agreement)
> - Jurisdiction: KE (Republic of Kenya)
> - Counterparties: AfriBeat Live Experiences Limited ("Promoter") and Amina Wanjiru p/k/a "Mina W." ("Artist")
> - Primary Reference Standards Cited:
> - KECOBO-LIVE-STD-01: Kenya Copyright Board (KECOBO) Advisory Copyright Contract Manual · Live Performance & Concert Booking Standard (CC BY 4.0 / Statutory Guidance)
> - KE-CAP130-SEC30: Kenya Copyright Act, Cap. 130 (Section 30 · Rights of Performers in Live Performances and Fixation Consent)
> - WIPO-LIVE-STD-06: WIPO How to Make a Living from Music · Live Performance, Radius Exclusivity & Cancellation Standard (CC BY 4.0)
> - Overall Risk Profile: Mixed Live Booking Agreement (Demonstrating Balanced vs. Risky Gig Clauses) (Teaches the system how to evaluate 50% Upfront Deposit + Pre-Stage Settlement vs. Post-Show Payment Delays, Radius Clauses, Section 30 Performer Fixation Rights vs. Sponsor Commercial Capture, Technical Rider Safety, and Rain-Out / Cancellation Fee Rules.)

PREAMBLE AND RECITALS

THIS LIVE PERFORMANCE AND FESTIVAL BOOKING AGREEMENT (this "Agreement") is entered into on the 11th day of December, 2026 (the "Effective Date") between AFRIBEAT LIVE EXPERIENCES LIMITED, of Kilimani Business Centre, Kirichwa Road, P.O. Box 61029-00100, Nairobi, Kenya (the "Promoter"), and AMINA WANJIRU, professionally known as "Mina W.", of P.O. Box 88210-00200, Nairobi, Kenya (the "Artist").

WHEREAS, the Promoter is organizing the "AfriBeat New Year's Eve Concert" at Uhuru Gardens, Nairobi on 31st December, 2026 (the "Event"), and engages the Artist to perform a 45 minutes headline set from 22:30 to 23:15 EAT.

CLAUSE 1: PERFORMANCE FEE AND PRE-STAGE SETTLEMENT

1.1 Gross Fee (50% Deposit / 50% Prior to Stage Walk-On). The Promoter shall pay the Artist a fixed Performance Fee of Kenya Shillings Two Hundred and Fifty Thousand (KES 250,000) on a gross receipts basis (subject only to 5% resident Withholding Tax under the Income Tax Act, Cap. 470), payable in two installments: (a) a non-refundable booking deposit of 50% (KES 125,000) upon execution of this Agreement; and (b) the remaining balance of 50% (KES 125,000) via real-time bank transfer or M-Pesa at least 2 hours prior to the Artist's scheduled stage walk-on time on 31st December, 2026. If the 100% full fee is not settled prior to stage walk-on, the Artist may decline to perform while retaining the 50% deposit and maintaining her right to the full balance.

> [EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 1.1]
> - Clause ID: 1.1 | Topic: royalties | Affects: money
> - Drafted For: artist | Comparison Outcome: matches_standard | Mbiu Label: typical | Implication: none
> - Reference Standard Benchmark (KECOBO-LIVE-STD-01): "The Promoter shall pay the Artist a 50% non-refundable deposit upon signing and the remaining 50% balance (100% in total) at least 2 hours prior to the Artist taking the stage on the day of the performance, failing which the Artist shall not be obligated to perform and shall remain entitled to the full fee."
> - Mbiu Verified Card Fields:
> - headline: "50% upfront & 50% paid before going on stage"
> - key_quote: "remaining balance of 50% (KES 125,000) via real-time bank transfer or M-Pesa at least 2 hours prior to the Artist's scheduled stage walk-on time"
> - what_it_says: "You get KES 250,000 gross. You get a 50% deposit (KES 125,000) on signing and the other 50% (KES 125,000) at least 2 hours before you walk on stage."
> - what_it_means: "You could receive 100% of your KES 250,000 fee before stepping on stage, and if the Promoter does not pay 2 hours before your set, you do not have to perform."
> - comparison_note: "Matches the KECOBO live performance standard: 50% non-refundable deposit on signing and 50% paid at least 2 hours before stage walk-on."

- money_inputs: {"rate": 250000.0, "basis": "gross", "deductions": ["5% resident Withholding Tax"], "quote": "fixed Performance Fee of Kenya Shillings Two Hundred and Fifty Thousand (KES 250,000) on a gross receipts basis"}
- money_comparison: {"contract_basis": "gross", "reference_basis": "gross", "contract_rate": "KES 250,000 gross (50% on signing / 50% 2 hours before stage)", "reference_rate": "50% gross on signing / 50% gross 2 hours before stage"}
- fairer_wording: "The Promoter shall pay the Artist a 50% non-refundable deposit upon signing and the remaining 50% balance (100% in total) at least 2 hours prior to the Artist taking the stage on the day of the performance, failing which the Artist shall not be obligated to perform and shall remain entitled to the full fee."
- ask_them: []

CLAUSE 2: RADIUS EXCLUSIVITY (PUBLIC TICKETED SHOWS vs. PRIVATE CORPORATE GIGS)

2.1 90 Days Countrywide Blackout Including Private Corporate & Wedding Gigs. For a period of 60 days before the Event on 31st December, 2026 and 30 days after the Event (90 days in total), the Artist shall not perform live at any public concert, nightclub, private corporate end-of-year party, or wedding anywhere in the Republic of Kenya without the Promoter's prior written consent.

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 2.1]
- Clause ID: 2.1 | Topic: exclusivity | Affects: freedom_to_work
- Drafted For: label | Comparison Outcome: worse_for_you | Mbiu Label: worth_asking_about | Implication: major
- Reference Standard Benchmark (WIPO-LIVE-STD-06): "Any radius exclusivity restriction shall be limited to public ticketed concerts within a 25 kilometer radius of the Venue for no more than 14 days prior to the Event, and shall expressly exclude private corporate events, weddings, and television appearances."
- Mbiu Verified Card Fields:
- headline: "90 days countrywide ban on all shows & gigs"
- key_quote: "60 days before the Event on 31st December, 2026 and 30 days after the Event (90 days in total), the Artist shall not perform live at any public concert, nightclub, private corporate end-of-year party, or wedding anywhere in the Republic of Kenya"
- what_it_says: "This ban lasts 60 days before and 30 days after the show (90 days total). You cannot play at any club, concert, wedding, or work party in Kenya."
- what_it_means: "You could lose all your November, December, and January holiday gigs·including private corporate parties and weddings that do not compete with the concert."
- comparison_note: "Standard WIPO live terms limit radius exclusivity to public ticketed concerts within 25 km for 14 days before the show, and allow private corporate and wedding gigs."
- fairer_wording: "Any radius exclusivity restriction shall be limited to public ticketed concerts within a 25 kilometer radius of the Venue for no more than 14 days prior to the Event, and shall expressly exclude private corporate events, weddings, and television appearances."
- ask_them: ["Can we limit the blackout to public ticketed shows within 25 km for 14 days before the show, allowing private gigs?"]

CLAUSE 3: LIVE RECORDING, LIVESTREAM MONETIZATION AND SPONSOR COMMERCIALS

3.1 Perpetual Fixation, Pay-Per-View Livestream and Sponsor Commercial Rights. Notwithstanding Section 30 of the Copyright Act (Cap. 130, Laws of Kenya), the Artist grants the Promoter and the Event's corporate sponsors the perpetual, worldwide, royalty-free right to record audio and video of the Artist's entire 45 minutes performance, monetize it via paid pay-per-view livestreams and YouTube uploads, and use clips of the Artist's performance and songs in television and digital commercials for the Event's sponsors without any additional fee or royalty to the Artist.

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 3.1]
- Clause ID: 3.1 | Topic: grant_of_rights | Affects: ownership
- Drafted For: label | Comparison Outcome: worse_for_you | Mbiu Label: worth_asking_about | Implication: major
- Reference Standard Benchmark (KE-CAP130-SEC30 & KECOBO-LIVE-STD-01): "Pursuant to Section 30 of the Copyright Act (Cap. 130), the Promoter shall not record, broadcast, livestream, or commercially exploit the Artist's live performance without a separate written synchronization license and broadcast fee, save for short event recap clips not exceeding 60 seconds on the Promoter's official event pages."
- Mbiu Verified Card Fields:
- headline: "Promoter & sponsors get free commercial ads"

- key_quote: "perpetual, worldwide, royalty-free right to record audio and video of the Artist's entire 45 minutes performance, monetize it via paid pay-per-view livestreams and YouTube uploads, and use clips of the Artist's performance and songs in television and digital commercials for the Event's sponsors"
- what_it_says: "The Promoter and sponsors can film your full 45 minutes set and sell streams. They can also put your show in TV and web ads forever with no extra pay."
- what_it_means: "Sponsors could use footage of you performing your songs in their brand commercials forever without paying you an endorsement or synchronization license fee."
- comparison_note: "Under Section 30 of the Copyright Act (Cap. 130) and the KECOBO standard, promoters may only post up to 60 seconds recap clips; commercial ads and livestreams need separate pay."
- jargon_definitions: {"neighboring rights": "Rights under Section 30 of the Kenya Copyright Act that protect your live performances from being recorded or broadcast without your permission.", "synchronization license": "A paid license permitting someone to pair your music or performance with a commercial or video."}
- fairer_wording: "Pursuant to Section 30 of the Copyright Act (Cap. 130), the Promoter shall not record, broadcast, livestream, or commercially exploit the Artist's live performance without a separate written synchronization license and broadcast fee, save for short event recap clips not exceeding 60 seconds on the Promoter's official event pages."
- ask_them: ["Can we limit recording to 60 seconds recap clips and require a separate paid deal for livestreams or sponsor ads?"]

CLAUSE 4: SOUNDCHECK, TECHNICAL SAFETY AND CANCELLATION ALLOCATION

4.1 Technical Rider, Stage Safety and Cancellation Protection. The Promoter shall provide professional stage, lighting, and sound equipment in accordance with the Artist's Technical Rider and shall provide a 60 minutes soundcheck between 14:00 and 17:00 EAT on the Event Date, plus 24 hours backstage security. If the Promoter cancels the Event within 14 days of the Event Date for any reason other than Force Majeure, 100% of the KES 250,000 Performance Fee shall be payable to the Artist. If the Event is prevented by Force Majeure (such as extreme weather or government order), the Artist shall retain the 50% Booking Deposit (KES 125,000) and the Parties shall in good faith negotiate a rescheduled date. This Agreement is governed by the laws of Kenya.

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 4.1]

- Clause ID: 4.1 | Topic: termination | Affects: money
- Drafted For: artist | Comparison Outcome: matches_standard | Mbiu Label: typical | Implication: none
- Reference Standard Benchmark (KECOBO-LIVE-STD-01 & WIPO-LIVE-STD-06): "The Promoter shall comply with the Artist's Technical Rider and provide safe stage and security facilities; if the Promoter cancels within 14 days of the Event without Force Majeure, 100% of the fee is payable, and upon Force Majeure the Artist retains the 50% deposit."
- Mbiu Verified Card Fields:
- headline: "You keep 50% deposit on weather cancellation"
- key_quote: "If the Promoter cancels the Event within 14 days of the Event Date for any reason other than Force Majeure, 100% of the KES 250,000 Performance Fee shall be payable to the Artist. If the Event is prevented by Force Majeure (such as extreme weather or government order), the Artist shall retain the 50% Booking Deposit"
- what_it_says: "The Promoter provides sound, security, and a 60 minutes soundcheck. You get 100% (KES 250,000) if cancelled within 14 days, or keep your 50% deposit (KES 125,000) on Force Majeure."
- what_it_means: "Because you turned down other New Year's Eve bookings for this show, you could keep your KES 125,000 deposit if bad weather stops the event, or get 100% on late cancellation."
- comparison_note: "Matches the KECOBO and WIPO live booking standard: 100% fee payable if the promoter cancels within 14 days, and the artist retains the 50% deposit on Force Majeure."
- jargon_definitions: {"force majeure": "Unforeseeable events beyond either side's control·such as severe storms, natural disasters, or government bans·that make holding the event impossible."}
- fairer_wording: "The Promoter shall comply with the Artist's Technical Rider and provide safe stage and security facilities; if the Promoter cancels within 14 days of the Event without Force Majeure, 100% of the fee is payable, and upon Force Majeure the Artist retains the 50% deposit."
- ask_them: []

SIGNATURES

SIGNED for AFRIBEAT LIVE EXPERIENCES LTD: _____ | Date: 11th December, 2026

SIGNED by the ARTIST (AMINA WANJIRU p/k/a "Mina W."): _____ | Date: 11th December, 2026